

FIRST ENDORSEMENT

Acting Executive Director Matthew Kadushin, Civilian Complaint Review Board to First Deputy Commissioner Nancy Slater, Department Advocate's Office, August 25, 2023. Contents noted. Recommend approval of the negotiated plea agreements in DADS No. 2022-25122 and DADS No. 2021-24163 against Police Officer Howard Peralta, Tax Registry No. 934052. These cases were conferenced on January 17, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler. In DADS No. 2022-25122, Police Officer Howard Peralta accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications and the negotiated penalty of a Command Discipline Schedule B and the forfeiture of eight (8) vacation days to run concurrent with DADS No. 2021-24163. In DADS No. 2021-24163, Police Officer Howard Peralta accepted the finding(s) of substantiation of the allegations contained in the Charges and Specifications and the negotiated penalty of a Command Discipline Schedule A and the forfeiture of five (5) vacation days to run concurrent with DADS No. 2022-25122. Charges and Specifications to be dismissed for plea purposes. These negotiated penalties were approved by ADCT Adler.

These cases were re-conferenced on August 22, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, to amend the penalty for DADS No. 2021-24163. For DADS No. 2021-24163, the amended penalty is a Command Discipline Schedule B and the forfeiture of five (5) vacation days, to run concurrent with DADS No. 2022-25122. The penalty for DADS No. 2022-25122, a Command Discipline Schedule B and the forfeiture of eight (8) vacation days to run concurrent with DADS No. 2021-24163, remains the same. These negotiated penalties were approved by ADCT Adler.

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
New York City Civilian Complaint Review Board

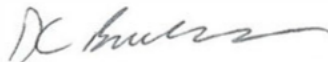


DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-25122
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PERALTA	FIRST HOWARD	M.I.	COMMAND 034 PRECINCT
SHIELD NO. 2064	TAX REGISTRY NO. 934052	SOCIAL SECURITY NO.	DATE APPOINTED 01/20/2004	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Howard Peralta, on or about July 11, 2020, at approximately 1544, while assigned to 034 PCT and on duty, on the telephone inside of the 34th Precinct, New York County, abused his authority as a member of the New York City Police Department, in that he refused to provide his name to § 87(2)(b) without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 8.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Howard Peralta, on or about July 11, 2020, at approximately 1544, while assigned to 034 PCT and on duty, on the telephone inside of the 34th Precinct, New York County, abused his authority as a member of the New York City Police Department, in that he refused to provide his shield number to § 87(2)(b) without police necessity.	DISMISSED	For DADS # 2022-25122—Command Discipline B and the forfeiture of eight (8) vacation days [forfeiture of three (3) vacation days for Specification One (1) and Specification Two (2) to run concurrent to one another and consecutive to Specification Three (3); and the forfeiture of five (5) vacation days for Specification Three (3) to run consecutive to Specification One (1) and Specification Two (2)]; to run concurrent with DADS # 2021-24163.
3 . Police Officer Howard Peralta, on or about July 11, 2020, at approximately 1544, while assigned to 034 PCT and on duty, on the telephone inside of the 34th Precinct, New York County, was discourteous, in that he hung up the telephone on § 87(2)(b) without police necessity.	DISMISSED	


FIRST DEPUTY COMMISSIONER

11/9/23
DATE

POLICE COMMISSIONER'S APPROVAL

☒ Approved

☐ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

12/27/23
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2021-24163
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, PERALTA	FIRST HOWARD	M.I.	COMMAND 034 PRECINCT
SHIELD NO. 2064	TAX REGISTRY NO. 934052	SOCIAL SECURITY NO.		DATE APPOINTED 01/20/2004
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Howard PERALTA, on or about July 20, 2021, at approximately 1555, while assigned to 034 PCT and on duty, in the vicinity of inside the 34th Precinct stationhouse, New York County, abused his authority as a member of the New York City Police Department, in that he did not process § 87(2)(b) complaint regarding an officer, without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 8.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Brubio 11/9/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caber 12/29/23
POLICE COMMISSIONER DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner November 8, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case Nos. 2021-24163 and 2022-25122 against Police Officer Howard Peralta, Tax #934052, with the recommendation that the Charges and Specifications against Police Officer Peralta in both aforementioned disciplinary cases be dismissed and that Police Officer Peralta receive a Schedule "B" Command Discipline and forfeit eight (8) vacation days for his combined misconduct. Assistant Deputy Commissioner, Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement. **RECOMMEND APPROVAL.**

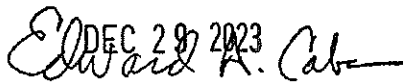
TIK/pk



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

APPROVED



EDWARD A. CABAN
POLICE COMMISSIONER